

**SUBSTITUTE FOR
SENATE BILL NO. 503**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
(MCL 324.101 to 324.90106) by adding subpart 3 to part 147.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

SUBPART 3

PLASTIC MICROBEADS

Sec. 14731. As used in this subpart:

(a) "Air care product" means a chemically formulated consumer product labeled to indicate that the purpose of the product is to enhance or condition the indoor environment by eliminating unpleasant odors or freshening the air.

(b) "Cleaning product" means either of the following:

(i) An automotive product, general cleaning product, or floor



polish or floor maintenance product used primarily for janitorial, household, or institutional cleaning purposes.

(ii) An air care product.

(c) "Department" means the department of environment, Great Lakes, and energy.

(d) "Person" means an individual, partnership, corporation, association, governmental entity, or other legal entity.

(e) "Personal care product" means an article intended to be rubbed, poured, sprinkled, or sprayed on, introduced into, or otherwise applied to the human body for cleansing, beautifying, promoting attractiveness, or altering appearance, regardless of whether the article is intended to be rinsed off, and any material intended for use as a component of such an article. Personal care product does not include a prescription drug.

(f) "Plastic microbead" means an intentionally added particle of a solid polymeric material, to which a chemical additive or other substance may have been added, measuring less than 5,000 μm in all three dimensions. A plastic microbead does not include a particle consisting of polymers that are derived in nature and have not been chemically modified by a method other than hydrolysis.

Sec. 14732. A person shall not do any of the following:

(a) Beginning January 1, 2028, manufacture, offer for promotional purposes, sell, or distribute a material that contains plastic microbeads and is intended for use in this state. This subdivision does not apply to a personal care product or cleaning product.

(b) Beginning January 1, 2029, offer for promotional purposes, sell, or distribute a personal care product or cleaning product that contains plastic microbeads and is intended for use in this



1 state. This subdivision does not apply if the amount of plastic
2 microbeads is less than 1 part per million by weight.

3 Sec. 14733. (1) A person that violates section 14732 or a rule
4 promulgated to implement section 14732 is subject to a civil fine
5 of not more than \$2,000.00 per day of violation. The prosecutor of
6 the county in which the violation occurred or the attorney general
7 may bring an action to collect a fine under this subsection. A fine
8 collected must be deposited in the state general fund.

9 (2) In determining the amount of a civil fine under subsection
10 (1), the court shall consider all of the following:

11 (a) The nature and extent of the violation.

12 (b) The number and severity of violations.

13 (c) The economic effect of the penalty on the violator.

14 (d) Whether the violator took good-faith measures to comply
15 with this subpart and when these measures were taken.

16 (e) The deterrent effect that the imposition of the fine would
17 have on both the violator and other persons regulated under section
18 14732.

19 (f) Any other factor that justice may require.

20 Sec. 14734. The department shall do all of the following:

21 (a) Administer and enforce this subpart.

22 (b) Provide on the department's publicly accessible website a
23 summary of the prohibitions of section 14732 and a means for
24 persons to report violations of this subpart.

25 (c) By July 1, 2030, and each year thereafter, prepare, post
26 on the department's website, and provide to the chairs of the
27 standing legislative committees and appropriations subcommittees
28 with primary responsibility for environmental protection issues a
29 report on both of the following:



1 (i) The enforcement of this subpart.

2 (ii) Progress in achieving the goals of section 14732.

3 Sec. 14735. Pursuant to the administrative procedures act of
4 1969, 1969 PA 306, MCL 24.201 to 24.328, the department may
5 promulgate rules to implement this subpart.